

Art. 16 Right to rectification (65.6%), Consent (72.7%), Data Controller (93.0%), Data Source (68.3%), Legal Basis (88.0%), Legitimate Interest (63.8%), Non-Personal Data (78.0%), Personal Data (99.7%), Processing (92.3%), Recipient (62.0%), Required Purpose (97.4%), Third Party (82.4%):

PRIVACY POLICY PRIVACY POLICY English French Last revised: November 18, 2024 Effective: November 18, 2024 Introduction This privacy policy (Privacy Policy) applies to personal information provided to TSR Gym Technik Ltd.

Consent (94.3%), Data Controller (94.5%), Personal Data (78.1%), Processing (86.6%), Third Party (82.8%):

is an affiliate of ABC Fitness Solutions, LLC, who may operate under any of the following developer names: Ignite Engagement; Ignite Engagement 1; Trainerize CBA-STUDIO; Trainerize CBA-STUDIO 1; Trainerize CBA-STUDIO 2; Trainerize CBA-ENTERPRISE; CBA-Pro1; CBA-Pro2.

Non-Personal Data (64.6%), Personal Data (99.8%), Processing (99.6%):

This Privacy Policy covers how our Services process information relating to identified or identifiable individuals and households (Personal Information).

Data Controller (94.5%), Personal Data (98.2%), Processing (99.4%):

(We use the term process to refer to the collection, use, storage, and sharing of Personal Information.) We process Personal Information on behalf of our customers (TSR Customers), which include various kinds of individuals and businesses who provide training, coaching, or similar services to individuals (Trainees).

Processing (98.1%), Third Party (99.3%):

Your Personal Information may be shared with third parties.

Data Subject (93.3%):

For example, if you use the Services as a trainee as part of your fitness facility membership or as a trainer for a TSR Customer, your Personal Information may also be provided to your fitness facility and/or your trainer.

Processing (98.7%):

We also process certain Personal Information of our customers on our own behalf, and this kind of processing is also described in this Privacy Notice.

Data Controller (96.1%), Data Source (86.9%), Data Subject (64.9%), Legal Basis (73.2%), Personal Data (62.5%), Processing (76.9%), Right (71.6%), Scale EU (67.0%):

(the Vendor we use or our) through the services we make or offer (Services), including the Trainerize software-as-a-service platform as well as any associated website, application, or widget that links to

this Privacy Policy.

Legal Basis (78.1%):

Please note that we are not regulated under the Health Insurance Portability and Accountability Act of 1996 (HIPAA).

Art. 17 Right to erasure (right to be forgotten) (79.3%), Legal Basis (61.9%), Processing (84.8%):

Consequently, we are not required to comply with that law in our delivery of the Service or the processing of your Personal Information.

Consent (87.1%), Personal Data (98.9%), Required Purpose (72.4%):

Processing of Personal Information Our Services collect the following categories of Personal Information: Information you submit to us Account and identity information: in the event that you choose to register as a user of the Services, you will be asked to create a unique username and private password (collectively, the Access ID) which will be used to create and activate an account through which we can make the Services available to you (the Account).

Personal Data (97.5%), Required Purpose (80.5%):

We may require certain information such as your name, address, telephone number, and email address to make the Services available to you.

Consent (80.5%), Processing (69.1%):

Trainers may also elect to import their trainees contacts and information contained from their contact lists.

Consent (75.8%), Required Purpose (89.9%):

Fitness information: you may choose to provide other information to improve your experience or enable certain features of the Services.

Personal Data (68.5%):

If you are a Trainer (as defined in the Terms of Service), such information can include fitness and meal plans you create for Trainees (as defined in the Terms of Service).

Personal Data (89.0%):

Financial information: we may collect billing and other financial information to process payments required in connection with the Services.

Personal Data (96.0%), Processing (99.3%):

Commercial information: we maintain records about the transactions you engage in with us or other parties (e.g., a Trainer) through the Services, such as information about purchases, what has been provided to you, when and where, if applicable, how much you paid, and similar information.

Personal Data (78.9%):

We shall revise this Privacy Policy when our Personal Information processing practices change.

Personal Data (80.7%):

User content: you may choose to provide additional information to improve your experience or for Trainees or Trainers experiences which may be in any form, such as text, images, sound, or video.

Consent (80.7%):

You may also choose to provide additional information to us, such as when you contact us for technical support through the Services, participate in a poll, survey, or otherwise provide feedback on the Services.

Personal Data (96.8%):

Information we collect from your use of the Services Log and usage data: we collect log data and usage information relating to your use of the Services.

Non-Personal Data (74.1%):

For example, we collect information about how you interact with the Services, such as when you log into your Account, how you navigate the Services, and what functions you use in the Services.

Non-Personal Data (93.0%), Personal Data (83.6%):

We also collect information about the devices used to access the Services, such as the device type, operating system, and IP address.

Consent (92.5%):

Location Information: With your consent, we collect Personal Information about your location.

Data Source (72.7%):

Information we collect from third parties Social Media and App Information: If you link your Account to third-party services, we may collect information about you from such other services.

Personal Data (96.2%):

For example, you can link your account to Facebook and import your Facebook profile information.

Consent (91.8%), Personal Data (84.3%):

You may also choose to grant us access to fitness or activity information from a third-party fitness application.

Data Controller (64.2%):

Google, which operates YouTube, describes its processing of Personal Information in its privacy policy at <https://www.google.com/policies/privacy>.

Consent (60.6%), Data Subject (82.9%), Personal Data (74.8%), Processing (91.3%), Required Purpose (67.7%):

We process data, content (including audiovisual content) and information provided to the Services through the YouTube API services, including without limitation YouTube Video ID information, connection tokens for YouTube channels, and YouTube video thumbnail information (collectively, the YouTube API Data) to provide the functionality of the Services to you, including without limitation to (i) enable Trainers to search and select video content (including training exercises) for sharing and display to Trainees and other users of the Services; (ii) enable Trainers to connect to their YouTube channel, and create custom video content (including training exercises) for the Services and link to, share and display such content and control the settings of such content (including un-listing the content from YouTube); (iii) enable Trainers, Trainees, and other users of the Services to play YouTube content through the Services.

Personal Data (93.6%), Third Party (83.1%):

Consumer profile information: Information used to create a profile about you reflecting your preferences, market segments, likes, favorites and other data or analytics provided about you or your account by a Trainer, TSR Customer, social media companies or data aggregators, including household data, the products and services you use or intend to use or purchase, and your interests.

Consent (94.4%), Legal Basis (84.9%), Required Purpose (93.2%), Right (95.3%), Third Party (86.0%):

We use Personal Information for the following purposes: to create and activate your Account; to respond to any request for customer service or technical support; to make the Services available to you and to other users of the Services; to improve the quality of the Services; to assess service levels, monitor traffic patterns and gauge popularity of different features, functionalities and service options of, or related to, the Services; to create and manage your Account, and to verify access rights to the Services; to bill, or render invoices relating to, your Account, and to collect any debt owed to us; to facilitate payments between you and other users of the Services; to communicate with you, including for the purpose of providing you with notifications, content, and information about your Account and/or the Services; to communicate with you for marketing purposes with your consent; to administer, maintain, monitor, and secure the Services; to respond to claims of any violation of our rights or those of any third party; to protect the rights, property, or personal safety of you, our personnel, other users, and the public; as required to comply with any applicable laws, or as authorized by any applicable laws; and You may at any point withdraw your consent to receive the marketing communications set out above.

Legal Basis (75.2%), Processing (99.4%), Retention (97.7%):

We retain each category of Personal Information above for as long as may be reasonably to achieve

the purposes for which it was collected or as may be required or permitted by law, after which time we will delete the Personal Information or aggregate or anonymize the information so that it no longer relates to an identified or identifiable person or household.

Legal Basis (97.7%), Required Purpose (84.5%), Scale EU (72.2%), Scale Non-EU (70.2%):

The Legal Basis for Processing Your Personal Information For users of our Services in the EU and UK, the legal bases for our processing of Personal Information is primarily that the processing is necessary for providing and supporting the Services for which you, as a Trainee, Trainer, or TSR Customer have entered into a contract with us.

Legitimate Interest (92.5%), Processing (95.7%):

We may also process Personal Information in accordance with our legitimate interests, as outlined in this privacy policy, or because of a non-contractual legal obligation that applies to us, such as legally compelled disclosures.

Consent (85.8%):

We may also, on occasion, process Personal Information on the basis of your consent.

Data Source (76.0%):

If you are a Trainee, Personal Information you provide may be shared with your Trainer and/or TSR Customer.

Authority (97.2%), Legal Basis (99.2%), Right (70.5%):

We share Personal Information with law enforcement authorities who make a request in accordance with applicable law.

Third Party (73.8%):

We share Personal Information with our partner organizations, such as the Trainerize family of companies, which includes parents, corporate affiliates, subsidiaries, business units and other companies that share common ownership.

Contract (95.4%), Legal Basis (81.6%), Required Purpose (86.1%):

We share Personal Information with third-party service providers that we engage with contracts that require them to use your Personal Information only for the purpose of delivering the services for which we have engaged the third-party or as otherwise permitted by law.

Processing (64.4%), Required Purpose (72.5%):

These kinds of third parties provide business, professional, administrative, or technical support functions for us, such as payment processing, billing, data storage, transmission of email or other messages, and quality assurance.

Required Purpose (68.5%):

At your direction, we share Personal Information with third-party partners in connection with your use of the functionality of the Services.

Processing (96.2%), Third Party (78.4%):

This includes companies, such as FitBit, Garmin, and Withings, that collect, analyze, process, and/or store data that you may elect to integrate with our Services.

Art. 17 Right to erasure (right to be forgotten) (81.0%), Authority (93.3%), Legitimate Interest (71.3%), Lodge Complaint (74.3%), Right (84.0%):

Rights to Your Information Depending on the jurisdiction in which you live, you may be entitled to exercise rights relating to your Personal Information, including: (i) the right to withdraw consent to processing; (ii) the right to access your Personal Information and certain other supplementary information, under certain conditions; (iii) the right to object to data processing premised on our legitimate interests, a third party's legitimate interests, the public interest, or official authority vested in us; (iv) the right to erasure of Personal Information about you, under certain conditions; (v) the right to demand that we restrict processing of your Personal Information, under certain conditions, if you believe we have exceeded the legitimate basis for processing, processing is no longer necessary, are processing, or believe your Personal Information is inaccurate; (vi) the right to data portability of Personal Information concerning you that you provided us in a structured, commonly used, and machine-readable format, under certain conditions; (vii) the right object to decisions being taken by automated means which produce legal effects concerning you or similarly significantly affect you, under certain conditions; (viii) the right to lodge a complaint with data protection authorities; (ix) the right to request that we rectify or correct inaccurate Personal Information; and (x) the right to appeal the action we take in response to your request to exercise any of your other rights.

Right (68.6%):

Under such circumstances, you have the right to withdraw your consent.

Processing (96.8%), Required Purpose (81.0%):

Do Not Track and Global Privacy Control Signals Because no consensus has emerged on how to handle Do Not Track signals, the Services do not respond to such signals or use them to alter how Personal Information is processed.

Organisational Measure (78.7%):

Security We strive to prevent unauthorized access to your Personal Information.

Organisational Measure (74.4%):

We will regularly assess our security to ensure that we have in place reasonable technical,

administrative, and physical safeguards in place to protect your Personal Information from unauthorized access, use, and disclosure.

Personal Data (77.1%):

If you forget your password, we will ask you for the username associated with your Access ID and will send you an email containing your password to the email address associated with your Access ID.

Scale Non-EU (88.8%):

Jurisdictions Where Processing Occurs Your Personal Information may be processed in any country where we have facilities or in which we engage third-party processors/service providers, currently the United States, Canada, and France.

Processing (93.2%):

By using the Services, you consent to the transfer of information to countries outside your country of residence, which may have different data protection rules than in your country.

Authority (82.4%):

While such information is outside of the jurisdiction where it was collected, it may be subject to the laws of the country in which it is held, and may be subject to disclosure to the governments, courts or law enforcement or regulatory agencies of such other country, pursuant to the laws of such country.

Art. 18 Right to restriction of processing (66.7%), Personal Data (76.3%), Processing (95.9%), Right (62.2%):

These rights include: the right to know, meaning the right to request any or all of the following: the specific pieces of personal information we collected about you; the categories of personal information we collected; the categories of sources used to collect the personal information; the business or commercial purposes for collecting your personal information; and the categories of third parties with whom we have shared your personal information the right to request deletion of your personal information that we collected the right to have someone you authorize make a request on your behalf the right to opt-out of sale (as that term is defined in the CCPA) or the sharing of personal information for cross-contextual behavioral advertising purposes; please note, however, that, in connection with the Services, we do not sell or share personal information for cross-contextual behavioral advertising purposes the right to make a request for the correction of errors or inaccuracies in your personal information the right to restrict the processing of sensitive personal information the right not to be discriminated against for exercising any of these rights the right to request certain information regarding our disclosure of personal information to third parties

for their direct marketing purposes.

Legal Basis (97.1%):

Code 1798.100, et seq., known as the California Consumer Privacy Act (CCPA).

Authority (68.3%), Personal Data (96.6%):

Only you, or someone legally authorized to act on your behalf, may make a request related to your personal information.

Third Party (89.6%):

Collection of Personal Information The following tables show the categories of personal information we have collected in connection with the Services in the last 12 months and indicates whether each category of personal information has been shared for a business purpose or sold to a third party.

Personal Data (92.7%):

Category Purposes Sold/shared Social security, drivers license, state identification card, or passport number Not collected No Account log-in, financial account, debit card, or credit card number in combination with any required security or access code, password, or credentials allowing access to an account For processing your access to the Services No Precise geolocation Not collected, but the Services may enable certain functionality for users in proximity to one of our facilities; this is done without collecting or storing geolocation information.